

HEADNOTE

“1. The violation of the obligation to act as an independent counsellor, imposed by the code of conduct, has to be assessed with reference to the possible harm to the interests of the party on whose behalf the professional acts.

2. The violation of the obligation to act as an independent counsellor cannot be asserted by the opposing party, which has no interest in such a finding, but only by the party for whose benefit such an obligation is placed.

3. The fact that a party's representative also carries out active administration tasks on behalf of the represented party and that he may be directly interested in the outcome of the case is not decisive in order to consider that the representative is not independent for the purposes of the application of Rules 290, 291 and 292 'RoP'.”

COURT
Central Division in Paris

PATENT
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KEYWORDS

Party's representation

PROCEEDINGS
Infringement action

METHOD AND MEANS FOR
BROWSING BY WALKING

Rule 290 Powers of the Court as regards representatives

SUMMARY

The Central Division in Paris ruled on an infringement action. The patent at issue relates to a method and means for browsing by walking. According to the headnotes of the decision, representatives must act as independent counsellors. Violations of this obligation are assessed by reference to potential harm to the represented party's interests. However, only the represented party may assert such a violation. The opposing party has no legitimate interest in doing so. Furthermore, a representative may perform administrative tasks for the party. At the same time, a representative may have a direct interest in the case outcome. These circumstances do not automatically defeat the requirement of independence under the applicable procedural rules.